

COPY WRITTEN RESOLUTION

of

AXXSYS LIMITED

("Company")

PASSED ON 16/7 2015

THURSDAY



In accordance with the written resolution procedure in chapter 2 of part 13 of the Companies Act 2006, the following resolutions were duly passed on 16/7 2015 as special and ordinary resolutions as detailed below:

SPECIAL RESOLUTION

1. **That** the draft articles of association in the form attached (creating a new class of deferred shares), and signed by a director for identification purposes, be adopted as the articles of association of the Company in substitution for, and to the exclusion of, the existing articles of association of the Company (including all the provisions of the Company's memorandum of association which, by virtue of section 28 of the Companies Act 2006, are treated as provisions of the existing articles of association of the Company).

SPECIAL RESOLUTION

2. **That** subject to the passing of resolution 3 and pursuant to section 570 of the Act, the directors be and are generally empowered to allot equity securities (within the meaning of section 560 of the Act) for cash pursuant to the authority granted by resolution 3 up to an aggregate nominal amount of £4.90 as if section 561 of the Act did not apply to any such allotment; and

(unless previously revoked, varied or renewed) this power shall expire on the fifth anniversary of the date of this resolution but the Company may make an offer or agreement before this power expires which would or might require equity securities to be allotted for cash after this power expires and the directors may allot equity securities for cash pursuant to any such offer or agreement as if this power had not expired.

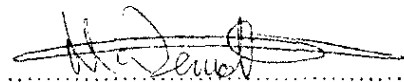
This power is in addition to all existing powers under section 570 of the Act.

ORDINARY RESOLUTION

3. **That**, pursuant to section 551 of the Act, the directors be and are generally and unconditionally authorised to exercise all powers of the Company to allot shares in the

Company or to grant rights to subscribe for, or to convert any security into, shares in the Company up to an aggregate nominal amount of £4.90, **provided that** (unless previously revoked, varied or renewed) this authority shall expire on 13/8/2020 but the Company may make an offer or agreement before this authority expires which would or might require shares to be allotted or rights to subscribe for, or to convert any security into, shares to be granted after this authority expires and the directors may allot shares or grant such rights pursuant to any such offer or agreement as if this authority had not expired.

This authority is in addition to all existing authorities under section 551 of the Act which, to the extent unused at the date of this resolution, are revoked with immediate effect).

A handwritten signature in black ink, appearing to read 'M. J. Dewar', is written over a horizontal dotted line.

Director

Company No.: 4967647

THE COMPANIES ACT 1985

PRIVATE COMPANY LIMITED BY SHARES

NEW ARTICLES OF
ASSOCIATION

of

AXXSYS LIMITED

Sd/

21/7/2015

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THE COMPANIES ACT 1985
PRIVATE COMPANY LIMITED BY SHARES
NEW ARTICLES OF ASSOCIATION

of

AXSYS LIMITED

(adopted by a special resolution of the Company
passed on)

1. PRELIMINARY

1.1 The regulations contained in table A in the schedule to the Companies (Tables A to F) Regulations 1985 (SI 1985/805) (as amended by the Companies (Tables A-F) (Amendment) Regulations 1985 (SI 1985 1052), the Companies Act 1985 (Electronic Communications) Order 2000 (SI 2000/3373), the Companies (Tables A-F) (Amendment) Regulations 2007 (SI 2007-2541) and the Companies (Tables A-F) (Amendment) (No. 2) Regulations 2007 (SI 2007 2826)) ("**Table A**") shall apply to the Company save insofar as they are excluded or varied by or are otherwise inconsistent with these Articles. Regulation 1 shall be modified by the deletion of the words "'communication" means the same as in the Electronic Communications Act 2000. "electronic communication" means the same as in the Electronic Communications Act 2000." and Regulations 8, 30, 54, 60 to 65 (inclusive), 67, 76 to 79 (inclusive), 81, 87, 89, 111, 112 and 115 of Table A shall not apply to the Company and in addition to the remaining regulations of Table A (as varied hereby) the following articles constitute the regulations for the management of the Company.

1.2 The liability of the members of the Company is limited to the amount, if any, unpaid on the shares held by them.

2. DEFINITIONS AND INTERPRETATION

2.1 In these Articles the following words and expressions shall (except where the context otherwise requires) have the following meanings:

"1985 Act" means the Companies Act 1985 including any statutory modification or re-enactment thereof for the time being in force;

"2006 Act" means the Companies Act 2006 including any statutory modification or re enactment thereof for the time being in force;

"Accepting Shareholder" has the meaning given to it in Article 28.5;

"Act" has the meaning given to it in Table A;

"Acting in Concert" has the meaning given to it in the City Code on Takeovers and Mergers for the time being;

"A Shares" means the A ordinary shares of £0.10 each in the capital of the Company from time to time;

"A Shareholder" means a Member holding A Shares;

"Auditors" means the auditors for the time being of the Company;

"B Shares" means the B ordinary shares of £0.10 each in the capital of the Company from time to time;

"Board" means the board of directors for the time being of the Company or any duly appointed committee thereof;

"Business Sale" means the sale of assets and/or business of the Company involving the assignment of the Company's commercial contracts and the transfer of its employees under the Transfer of Undertakings (Protection of Employment) Regulations;

"Cessation Date" means the date on which a Member ceases to be an employee or director of the Company for any reason (including death or bankruptcy) or the date on which a Member gives or is given notice of termination of his employment or the date of occurrence of a repudiatory breach by him of his employment contract (whichever is the earlier) or the date on which a bankruptcy or insolvency order is made by a

court of competent jurisdiction or an administrator or insolvency practitioner is appointed in relation to any Member;

"Compulsory Sale Notice" has the meaning given in article 11.2;

"Connected Person" shall have the meaning ascribed thereto in section 839 of the Income and Taxes Act 1988 and the words **"connected with"** shall be construed accordingly;

"Control" has the meaning ascribed thereto by section 840 of the Income and Corporation Taxes Act 1988;

"Deferred Shares" means deferred shares of £0.10 each in the capital of the Company from time to time;

"Directors" means the directors for the time being of the Company;

"Distributable Profits" has the meaning given to it in Section 181(a) of the 1985 Act;

"Dragging Consent" means a consent or approval in writing by or on behalf of the Dragging Shareholders;

"Dragging Shareholders" means the holders for the time being of not less than 75 per cent in nominal value of the A Shares (excluding any A Shares held as treasury shares);

"Equity Shares" means the A Shares and B Shares;

"Exit" means a Realisation or Liquidation;

"Family Trust" means a trust (whether arising under a settlement inter vivos or a testamentary disposition by whomsoever made or on an intestacy) under which the only persons being (or capable of being) beneficiaries are the individual Member and/or his Privileged Relations and no power of control over the voting powers conferred by such shares is for the time being exercisable by or subject to the consent of any person other than the trustees as trustees or the individual beneficial owner or his Privileged Relations;

"Internal Value" has the meaning given in article 11.5;

"Leaver" means a Member who ceases to be an employee and/or director of the Company;

"Listing" means the admission of the whole of any class of the issued share capital of the Company or any subsidiary of the Company to or to trading on a Recognised Investment Exchange or another exchange on which shares are publicly traded;

"Liquidation" means the passing of a resolution for the winding-up of the Company;

"Majority Shareholder" means a Member holding more than 5% of the issued A Shares;

"Market Value" means the market value of Shares determined in accordance with article 10;

"Member" means any registered holder for the time being of any class of share in the Company;

"Original Member" means a beneficial owner (being an individual) of Shares;

"Other Shareholders" has the meaning given to it in Article 28.2

"Period End" means the Company's "quarter-year", "half-year" or "3rd-quarter" in terms of its accounting reference period.

"Privileged Relation" means in relation to any Member, the Member's spouse for the time being, parent, brother or sister, and all linear descendants of that Member (including for this purpose any step-child, adopted child or illegitimate child of the Member, his linear descendants or any person who for the time being is married to such linear descendants) or any person who for the time being is married to such linear descendant but no linear descendant may be a Privileged Relation whilst a minor;

"Proposed Sale" and **"Proposed Sellers"** have the meanings given to them in Article 28.2;

"Proposed Transferee" means a person to whom a Seller proposes to transfer Sale Shares;

"Realisation" means a Share Sale, Business Sale or a Listing;

"Relevant Individual" means an employee or director of the Company;

"Recognised Investment Exchange" shall bear the meaning ascribed to it in section 285 of the Financial Services and Markets Act 2000;

"Sale Shares" means Shares which a Seller wishes to transfer;

"Seller" means any Member who wishes to transfer any Shares;

"Shareholder" means a person who is the holder of Shares;

"Shares" means shares in the capital of the Company;

"Share Sale" means the sale (which for these purposes shall exclude any permitted transfers pursuant to article 8 of these Articles) of any Share or Shares to any person resulting in that person together with any person acting in concert (within the meaning of the City Code on Takeovers and Mergers as in force at the date of the adoption of these Articles) with such person holding in excess of 50% of the Shares;

"Table A" means the regulations contained in Table A in the schedule to the Companies (Tables A - F) Regulations 1985 (SI 1985/805) (as amended by the Companies (Tables A - F) (Amendment) Regulations 1983 (SI 1983/1052), the Companies Act 1985 (Electronic Communications Order 2000) (SI 2000/3373) and the Companies (Tables A - F) (Amendment) (No.2) Regulations 2007 (SI2007/2856));

"Total Transfer Condition" means a condition in a Transfer Notice stipulating that such Transfer Notice is conditional upon all and not some only of the Sale Shares specified in it being sold;

"Transfer Notice" means a notice in writing by a Seller of his wish to transfer any Shares in accordance with article 9;

"Transfer Price" has the meaning given in article 9.4;

"working day" has the meaning given to it in section 1173(1) of the 2006 Act.

- 2.2 Unless it is specifically stated otherwise, any dispute as to value, or as to calculations or adjustments to be made, or as to amount, whether to or in respect of Market Value of Sale Shares under articles 10 (Valuation) or 11 (Compulsory Transfers) or otherwise pursuant to these Articles, if not resolved within 15 working days will be referred to the Auditors for final determination. If the Auditors decline to act in respect of any such referral, the matter will be determined by an independent firm of chartered accountants agreed for the purpose by the parties concerned or, in default of agreement within 5 working days after the Auditors have declined to act, appointed by the incumbent president of the Institute of Chartered Accountants of England and Wales upon the application of a party. The Auditors or independent accountants (as the case may be) will act as expert and not as arbiter and their costs will be borne as directed by the article in question or, if the article is silent on the point, as directed by the Auditors/independent accountants. In the absence of any such direction, such costs will be borne equally between the parties concerned. The written certificate of the Auditors/independent accountants (as the case may be) will be conclusive and binding on the Company and the Members (except in the case of fraud or manifest error).
- 2.3 Words incorporating the masculine gender only include the feminine and neuter genders and words incorporating the singular number only include the plural and vice versa.
- 2.4 Article headings and margin notes are for ease of reference only and do not affect the construction or interpretation of these Articles.
- 2.5 References to persons shall include bodies corporate, unincorporated associations and partnerships.
- 2.6 References to written or in writing shall include any method of representing or reproducing words in a legible form.
- 2.7 Words and expressions defined in or for the purposes of the Act (excluding any statutory modification of that meaning not in force when these Articles become binding on the Company) or Table A shall have the same meanings in these Articles unless the context otherwise requires.

3. SHARE CAPITAL

- 3.1 The authorised share capital of the Company at the date of adoption of these Articles is £74 divided into 490 A Shares of £0.10 each and 250 B Shares of £0.10 each.
- 3.2 The A Shares and the B Shares shall constitute different classes of shares for the purposes of the Act and any alteration to the memorandum of association or these Articles shall be deemed to constitute an alteration to the rights attached to each such separate class of shares. Until an Exit the B Shares shall carry a right to receive notice of, and to attend but not to vote at general meetings of the Company and the B Shares shall carry no right or entitlement to dividend. The A Shares and the B Shares shall otherwise rank *pari passu* in all respects. Upon an Exit the B Shares shall carry a right to receive notice of, and to attend and vote at general meetings of the Company and shall carry a right and entitlement to dividend.
- 3.3 The rights attached to the A Shares and the B Shares may, in each case, be altered or abrogated (whether or not the Company is being wound up) only with the prior consent of the holders of the issued Shares of that class given in accordance with article 3.4.
- 3.4 The consent of the holders of a class of Shares may be given by:
- 3.4.1 a special resolution passed at a separate general meeting of the holders of that class;
- 3.4.2 a written resolution in any form signed by or on behalf of the holders of not less than 75 per cent in nominal value of the issued Shares of that class.
- 3.5 The voting rights of Members set out in article 15 (Votes of Members) are subject to article 11.6 (Suspension of voting rights during compulsory transfer procedure) and article 3.7.
- 3.6 A Shares may be converted into Deferred Shares on such terms as may from time to time be agreed in writing between a holder of A Shares and the Company.
- 3.7 The holders of Deferred Shares shall, by virtue of or in respect of their holdings of Deferred Shares, not have the right to receive notice of any general meeting of the Company nor the right to attend, speak or vote at any such general meeting.

- 3.8 The Deferred Shares shall not entitle their holders to receive any dividend or other distribution. On a return of capital on a winding up, each holder of a Deferred Share shall be entitled to receive a sum equal to the nominal capital paid up or credited as paid up thereon but only after the sum of £10,000,000 per Share has been distributed amongst the holders of all Shares (other than the holders of the Deferred Shares) and the holders of the Deferred Shares shall not be entitled to any further participation in the assets or profits of the Company. Notwithstanding any other provisions of these articles, and unless specifically required by the provisions of the Act the Company shall not be required to issue any certificates in respect of the Deferred Shares.

4. SHARES.

- 4.1 Unless otherwise determined by special resolution any A Shares from time to time created shall be offered to the existing A Shareholders for allotment and issue in accordance with the following provisions:
- 4.1.1 on each occasion the A Shares shall be offered to the A Shareholders at the same price per Share and on the same terms as to payment;
 - 4.1.2 no A Shares shall be offered or issued otherwise than to Members already holding A Shares without the prior written consent of all the A Shareholders; and
 - 4.1.3 the Shares shall be offered amongst the A Shareholders in the same proportion (as nearly as maybe) to their existing holdings of A Shares or in such other proportions as all such Members shall unanimously agree in writing.
- 4.2 In accordance with section 567(1) of the 2006 Act, sections 561 and 562 of the 2006 Act shall not apply to an allotment of equity securities (within the meaning of section 560 of the 2006 Act) by the Company.
- 4.3 Unless otherwise determined by special resolution no Shares shall be allotted on terms that the right to take up the Shares allotted may be renounced in favour of, or assigned, to another person and no person entitled to the allotment of a Share may direct that such Share be allotted or issued to any other person.

5. LIEN

The Company shall have a first and paramount lien on every Share (whether or not it is a fully paid Share) for all monies (whether presently payable or not) called or payable at a fixed time in respect of that Share and the Company shall also have a first and paramount lien on all Shares (whether fully paid or not) standing registered in the name of any person whether solely or as one of two or more joint holders for all monies presently payable by him or his estate to the Company but the Directors may at any time declare any Share to be wholly or in part exempt from the provisions of this article. The Company's lien on a Share shall extend to any dividend or other amount payable in respect thereof.

6. CALLS

The liability of any member in default in respect of a call shall be increased by the addition at the end of the first sentence of Regulation 18 of the words "and all expenses that may have been incurred by the Company by reason of non-payment of the call".

7. TRANSFERS OF SHARES - PROHIBITED TRANSFERS

General Prohibitions

7.1 The Directors will not register any transfer of Shares to any of the following:

7.1.1 save in respect of any transfer of Shares made in accordance with article 27, any person who, in the opinion of the Directors is carrying on business directly or indirectly in competition with the Company; or

7.1.2 any person who does not have legal capacity to acquire such Shares or otherwise to comply fully with the provisions of these Articles.

Prohibition unless in accordance with those articles

7.2 Subject to article 7.1, the Directors will not register a transfer of Shares unless the transfer is permitted by article 8, (Permitted Transfers) or is effected in accordance with article 26 or 27.

7.3 For the purpose of ensuring that:

7.3.1 a transfer of Shares is permitted under these Articles; or

7.3.2 no circumstances have arisen whereby a Transfer Notice is required to be or ought to have been given;

the Board may require any Member to procure that any person whom the Board reasonably believe(s) to have information relevant to such purpose provides the Company with such information and evidence as the Board of Director(s) think fit. Pending the provision of such information the Directors will be entitled to refuse to register any relevant transfer.

- 7.4 Regulations 24 and 26 will not apply to the Company unless it is a transfer pursuant to this article 7 or articles 9 (Pre-emption) or 11 (Compulsory Transfers).

8. PERMITTED TRANSFERS

- 8.1 No A Shares or B Shares may be transferred at any time unless in accordance with this article or article 9 (Pre-emption) and, where applicable, article 28 (Tag Along) or articles 11 (Compulsory Transfer) or 26 (Purchase or Transfer of Deferred Shares) or 27 (Drag Along).
- 8.2 Where any Shares are the subject of a Transfer Notice, no transfers of any such Shares shall be permitted pursuant to this article 8.
- 8.3 Subject to article 8.2, any Share, other than a Deferred Share, may be transferred:
- 8.3.1 subject to article 8.4, by its Original Member to a person shown to the reasonable satisfaction of the Directors to be a nominee for such beneficial owner only, and by any such nominee to the beneficial owner or to another person shown to the reasonable satisfaction of the Directors to be a nominee for the beneficial owner only; or
- 8.3.2 subject to article 8.4, by its Original Member to the trustee or trustees of a Family Trust, and by any such Privileged Relation(s) or trustee(s) to the beneficial owner, or to any other person or persons shown to the reasonable satisfaction of the Directors to be a trustee or trustees for the time being (on a change of trustee) of the Family Trust in question; or
- 8.3.3 subject to article 8.4, by an Original Member to his or her Privileged Relation(s), and by any such Privileged Relation(s) to the Original Member, or to any other person or persons shown to the reasonable satisfaction of the Directors to be a Privileged Relation of the Original Member; or

8.3.4 in the case of Shares held by an undertaking, subject to article 8.5, to a group undertaking of the transferor.

Further transfers by privileged relatives, group members etc.

8.4 Where Shares are held by one or more nominees of their Original Member, or by a trustee or trustees of a Family Trust or by one or more Privileged Relations of an Original Member and any such person ceases to be:

8.4.1 a nominee of the beneficial owner of the Shares; or

8.4.2 a trustee of the Family Trust of the beneficial owner of the Shares; or

8.4.3 a Privileged Relation of the Original Member,

such person will on or before the cessation transfer such Shares to the Original Member or a transferee permitted (as the case may be) under article 8.3.1, article 8.3.2 or article 8.3.3 of such Original Member.

8.5 Where Shares have been transferred under article 8.3.4 (transfers to group undertakings) and the transferee ceases to be a group undertaking of the transferor, it will, on or before the cessation, transfer such Shares to the original transferor or to another group undertaking of the original transferor.

8.6 If a Member fails or refuses to execute and deliver any transfer in respect of any Shares pursuant to its obligations under article 8.4 or article 8.5, the Board may authorise any Director to execute and deliver the necessary transfer(s) on the defaulting Member's behalf. The Board will authorise registration of the transfer, and of the transferee as the holder of the Shares so transferred, once appropriate stamp duty (if any) has been paid. After registration, the title of the transferee as registered holder of such Shares will not be affected by any irregularity in or invalidity of such proceedings, which will not be questioned by any person.

9. PRE-EMPTION

Transfer Notices

9.1 Except in the case of a transfer pursuant to articles 8.3 and 8.4 or 27, and subject to the prohibitions on transfers set out in article 7, a Seller must give a Transfer Notice to the Company.

9.2 A separate Transfer Notice will (except as provided in article 11 (Compulsory Transfers)) be required for each class of Shares and will specify:

9.2.1 the number and class of Sale Shares;

9.2.2 the identity of the Proposed Transferee (if any); and

9.2.3 that the Transfer Notice is subject to a Total Transfer Condition. In the absence of any such stipulation it will be deemed to be so conditional.

9.3 No Transfer Notice will be capable of variation or cancellation without the consent of the Board.

Any Shares held by a Member on the date on which the Transfer Notice is given or the deemed date of service of the Transfer Notice will cease to confer the right to be entitled to receive notice of, attend and vote at any general meeting of the Company, or any meeting of the holders of any class of Shares with effect from the date on which the Transfer Notice is given or the deemed date of service of the Transfer Notice, and such Shares will not be counted in determining the total number of votes which may be cast at any such meeting, or for the purposes of a written resolution of any Members of class of Members. Such rights will be restored immediately upon the Company registering a transfer of the Sale Shares in accordance with article 9.

Transfer Price

9.4 The Transfer Notice will constitute the Company as the agent of the Seller for the transfer of the Sale Shares in accordance with this article 9 at the price of the Sale Shares as at the date of service or deemed service of the Transfer Notice determined in accordance with article 9.4 ("**Transfer Price**"). The Transfer Price will be the Internal Value of those Sale Shares on the date on which the Transfer Notice is served or deemed to be served.

For A Shares only, first offer to Members

9.5 The following provisions of this article 9.5 will apply, subject to article 9.8, to the transfer of any A Shares by any Member. On the determination of the Transfer Price, the Company (in its capacity as agent for the Seller) will give notice in writing to each of the Members (other than the Seller and any other Member who has served or who is deemed to have served a Transfer Notice pursuant to which the sale of such

Shares has not then been concluded) offering the Sale Shares for sale at the Transfer Price in accordance with articles 9.7 and 9.8. The notice will specify that the Members will have a period of up to 20 Business Days from the date of such notice within which to apply for some or all of the Sale Shares.

Offer to Company

- 9.6 Subject to article 9.5 in respect of A Shares, the following provisions of this article 9.6 will apply to the transfer of any Shares (including, for the avoidance of doubt, B Shares, except as stated in article 9.6.1) by any Member:
- 9.6.1 in relation to the transfer of A Shares, within ten Business Days after the expiry of the offer period specified in article 9.5 where the total number of Sale Shares applied for is less than the available number of Sale Shares the Board shall except in relation to Shares which are the subject of a Compulsory Sale Notice which would then be offered to the Company at the Transfer Price pursuant to the provisions of Part V of the 1985 Act, refuse to consent to the transfer;
- 9.6.2 in relation to the transfer of B Shares, on the determination of the Transfer Price the Board shall direct the Company (in its capacity as agent for the Seller) immediately to offer at the Transfer Price the Sale Shares to the Company pursuant to the provisions of Part V of the 1986 Act;
- 9.6.3 where the Sale Shares have been offered to the Company pursuant to this article 9.6, the Company shall be obliged, subject to having sufficient Distributable Profits with which to purchase the same, to purchase the Sale Shares specified in the Transfer Notice within 15 days of confirmation from the Auditors (such confirmation to be made within 10 days following the finalisation of the Company's next year-end (or Period End should the Board deem, in its absolute discretion, the preparation of Period End accounts to be appropriate) that the Company has sufficient Distributable Profits;
- 9.6.4 if the Company is unable, because of having insufficient Distributable Profits, to purchase in full the relevant number of Sale Shares within such 15 day period, the Company shall purchase as many of the Sale Shares as can lawfully be purchased within that period (if any) and the Company shall

purchase the balance as soon as it is lawfully and properly able to do so in its following accounting period(s):

9.6.5 the purchase of all the aforementioned Sale Shares shall be completed before the Company shall purchase any further Sale Shares offered to it subsequently by the Board under the procedure of this article 9.6:

9.6.6 if the Company is unable to purchase the Shares in full within the first initial 15 day period by reason of having insufficient Distributable Profits or not having other monies which may be lawfully applied for such purchase, then the amount which would have been paid had such purchase been made so unpaid shall be increased by an amount equal to the interest which would have accrued had interest on the unpaid amount been charged at the base rate of The Royal Bank of Scotland Plc in respect of the period from and including the date on which the initial 15 day period expired down to and including the date of actual payment and shall be paid as soon thereafter as, and to the extent that, Distributable Profits or other monies that may be lawfully applied for such purchase are shown in the year-end or Period-End accounts.

9.7 It will be a term of any offer made pursuant to article 9.5 that such Sale Shares shall be offered among the holders of A Shares in proportion (as nearly as possible) to their existing holdings of A Shares ("**Proportionate Entitlement**"). For the avoidance of doubt no Member shall be able to buy A Shares in excess of their Proportionate Entitlement should any such Shares be available.

Allocation of Shares

9.8 After the expiry of the offer period specified in article 9.5, (or, if sooner, upon valid applications being received for all of the Sale Shares in accordance with that article), the Board will allocate the Sale Shares as follows:

9.8.1 if the total number of Sale Shares applied for is equal to the available number of Sale Shares, each offeree will be allocated his Proportionate Entitlement;
or

9.8.2 if the total number of Sale Shares applied for is less than the available number of Sale Shares, no transfers shall take place except in relation to

Shares which are the subject of a Compulsory Sale Notice which would then be dealt with in accordance with the provisions of 9.6.1.

- 9.9 Allocations of Sale Shares made by the Company pursuant to this article 9 will constitute the acceptance by the persons to whom they are allocated of the offer to purchase those Sale Shares on the terms offered to them, provided that no person shall take more than his Proportionate Entitlement.

Completion of sale and purchase of Sale Shares

- 9.10 The Company will immediately upon allocating any Sale Shares (whether pursuant to article 9.6 or article 9.8) give notice in writing ("**Allocation Notice**") to the Seller and to each person to whom Sale Shares have been allocated specifying:

9.10.1 the number of Sale Shares so allocated;

9.10.2 the aggregate price payable for them; and

9.10.3 the place and time (being not later than five Business Days after the date of the Allocation Notice) at which the sale of the Sale Shares will be completed.

- 9.11 Completion of the sale and purchase of Sale Shares in accordance with the Allocation Notice will take place at the place and time specified in the Allocation Notice when the Seller will, upon receipt of the due price, transfer those Sale Shares specified in the Allocation Notice and deliver the relevant Share certificates to the persons to whom they have been allocated.

Default by the Seller

- 9.12 Except in the case of an acquisition of Sale Shares by the Company, if the Seller fails by the due completion date to execute and deliver transfers in respect of any of the Sale Shares which he is due to transfer, the Board may authorise any Director to:

9.12.1 execute the necessary transfer(s) on the Seller's behalf; and

9.12.2 against receipt by the Company of the Transfer Price payable for the relevant Sale Shares (to be held on trust for the Seller without interest) (the receipt being a good discharge to the offeree who will not be bound to see to the application of it), deliver such transfer(s) to the relevant offeree(s).

The Board will authorise registration of the transfer(s), and of the offeree(s) as the holder(s) of the Sale Shares so transferred, once appropriate stamp duty has been paid. After registration, the title of such offeree(s) as registered holder(s) of such Sale Shares will not be affected by any irregularity in, or invalidity of such proceedings, which will not be questioned by any person.

- 9.13 In the case of an acquisition of Sale Shares by the Company, if the Seller fails by the due completion date to transfer and/or to deliver the certificates (or a suitable indemnity) in respect of any Sale Shares, the Board may authorise any Director to execute, complete and deliver the necessary transfer and indemnity to the Company on the Seller's behalf. When that instrument has been duly stamped, the Company will ensure that such issued share capital is cancelled in accordance with the Act, and will hold the purchase monies on trust (without interest) for the Seller.

10. VALUATION

If the Auditors (or, by virtue of article 2.2, independent accountants) are required to determine Market Value, the provisions set out below will apply.

- 10.1 Market Value will be determined by the Auditors or, as the case may be, independent accountants, first valuing the Company as a whole:
- 10.1.1 assuming, if the Company is then carrying on business as a going concern, that it will continue to do so;
 - 10.1.2 assuming that the entire issued share capital of the Company is being sold as between a willing buyer and a willing seller by arm's-length private treaty for cash payable in full on completion;
 - 10.1.3 taking account of any Shares which may be allotted pursuant to options which have been issued by the Company and which are still outstanding;
 - 10.1.4 taking account of any bona fide offer for the Company received from an unconnected third party within six months prior to the Transfer Notice being served or deemed to have been served; and
 - 10.1.5 recognising that in any other circumstances the Shares are not freely marketable.

- 10.2 Having valued the Company as a whole, the Auditors or, as the case may be, independent accountants will determine the Market Value of the Shares concerned:
- 10.2.1 without having regard to whether the Shares concerned represent a majority or a minority interest; but
- 10.2.2 having regard to the rights and restrictions attached to the Shares concerned in respect of income, capital and transfer.
- 10.3 The costs and expenses of the Auditors (or independent accountants) for reporting on their opinion of the Market Value will be borne as to one half by the Seller and as to other half by the purchasing Shareholders pro-rata to the number of Sale Shares purchased by them unless the Seller is permitted to and does revoke the Transfer Notice under article 9 in which case the costs shall be borne solely by him.

11. COMPULSORY TRANSFERS

Circumstances which trigger compulsory transfer

- 11.1 This article 11 applies when:
- 11.1.1 a Relevant Individual is a Member; and/or
- 11.1.2 a Relevant Individual has established a Family Trust which holds the Shares, and/or
- 11.1.3 a Member holds the Shares as the nominee of a Relevant Individual; and/or
- 11.1.4 the Shares are held by a Privileged Relation or other person to whom the Relevant Individual has transferred Shares under article 8; and/or
- 11.1.5 the Shares are held by a company, any part of the issued share capital of which is beneficially owned by the Relevant Individual or a Privileged Relation, Family Trust or other person to whom the Relevant Individual is permitted to transfer Shares under article 8
- and the Relevant Individual ceases for any reason (including death or bankruptcy) to be an employee and/or director of the Company; and/or

a bankruptcy or insolvency order is made by a court of competent jurisdiction or an administrator or insolvency practitioner is appointed in relation to any Member in which circumstances.

Compulsory Pre-emption Procedure

11.2 Within four months after the Cessation Date the Board may serve notice ("**Compulsory Sale Notice**") on the Relevant Individual and/or any holder of Shares referred to in article 11.1 (or the Privileged Relations of any deceased Member or the trustee in bankruptcy of any bankrupt Member) (each a "**Compulsory Seller**" and together "**Compulsory Sellers**") requiring each such person to offer all of the Shares registered in his or their name(s) or to which he is or they are or may become entitled whether as a result of his or their holding of Shares or otherwise.

11.3 The Shares which are the subject of the Compulsory Sale Notice will be offered for sale (other than to any Compulsory Seller) in accordance with the provisions of article 9 as if the Compulsory Seller had served a Transfer Notice on the date of the Compulsory Sale Notice, which will apply as if set out in full in this article except to the extent that they are varied by the following provisions of this article 11.

Sale Price - Leaver

- 11.4 The Transfer Price for the Sale Shares will be the Internal Value of the Sale Shares on the Cessation Date, to be agreed or determined in accordance with articles 2.2 and 11.5;
- 11.5 "**Internal Value**" will be the price agreed by the Members in writing (the Members may from time to time agree in advance the Internal Value applicable to future transfers in writing) or, failing agreement, determined by the Auditors (or independent accountant) in accordance with article 2.2 to be 30% of the Market Value of such Shares on the Cessation Date (for the purposes of article 11) or the date of service or deemed date of service of a Transfer Notice (for the purposes of article 9), according to the principles set out in article 10, but having regard also to the effect on the Company of the Relevant Individual in question ceasing to be an employee or director of the Company, if such be the case.

Suspension of voting rights during compulsory transfer procedure

- 11.6 Any Shares held by a Compulsory Seller on the Cessation Date (and any Shares issued to a Compulsory Seller after such date by virtue of the exercise of any right or option granted or arising by virtue of his holding of the Sale Shares) will cease to confer the right to be entitled to receive notice of, attend and vote at any general meeting of the Company, or any meeting of the holders of any class of Shares with effect from the Cessation Date (or, where appropriate, the date of issue of such Shares, if later), and such Shares will not be counted in determining the total number of votes which may be cast at any such meeting, or for the purposes of a written resolution of any Members or class of Members. Such rights will be restored immediately upon the Company registering a transfer of the Sale Shares in accordance with article 9.

Transmission of Shares

- 11.7 Regulations 29 to 31 shall take effect subject to articles 11.8 and 11.9.
- 11.8 Without prejudice to articles 11.1 and 11.2 (the provisions of which, when operable, will override the provisions of this article 11.8 and the provisions of articles 11.7 and 11.9), a person entitled to a Share or Shares in consequence of the death, bankruptcy, receivership or liquidation of a Member or otherwise by operation of law shall be

bound at any time, if called upon in writing to do so by the Directors not later than 90 days after the Directors receive notice from the person concerned that he has become so entitled, to give a Transfer Notice (without specifying a Transfer Price) in respect of all of the Shares then registered in the name of the deceased or insolvent Member in accordance with the provisions of article 9, which will apply as if set out in full in this article.

11.9 If any such person fails to give a Transfer Notice in accordance with article 11.8 within 10 Business Days after being called upon to do so:

11.9.1 the Board may authorise any Director to execute and deliver a transfer of the Shares concerned to a person appointed by the Directors as a nominee for the person entitled to the Shares; and

11.9.2 the Company may give a good receipt for the purchase price of such Shares, register the purchaser or purchasers as the holders of them and issue certificates for the same to such purchasers. After registration, the title of such purchaser or purchasers as registered holder(s) of such Shares will not be affected by any irregularity in, or invalidity of, such proceedings, which will not be questioned by any person. In any such case the person entitled to the Shares as a consequence of the death, insolvency or otherwise by operation of law will be bound to deliver up the certificates for the Shares concerned to the Company whereupon he will become entitled to receive the purchase price. In the meantime, the purchase price will be held by the Company on trust for such person without interest.

11.10 Notwithstanding any other provision of these Articles any Deferred Share that is the subject of a Transfer Notice shall be transferred for no consideration.

12. ALTERATION OF SHARE CAPITAL

Regulation 32 of Table A shall be read and construed as if the word "ordinary" in the first line were replaced by the word "special".

13. NOTICE OF GENERAL MEETINGS

The Company shall give notice of all general meetings of the Company to each Member whether or not that Member has given to the Company an address within the United Kingdom at which notices may be given to him.

14. PROCEEDINGS AT GENERAL MEETINGS

- 14.1 Save when the Company has only one Member, the quorum for a general meeting of the Company shall be those persons holding 75% of the Shares carrying the right to vote upon the business to be transacted.
- 14.2 In Regulation 44 the words "of the Class of Shares the holders of which appointed him as director" shall be substituted for the words "any Class of Shares in the Company".
- 14.3 A poll may be demanded by any Member present in person or by proxy or (in the case of a corporate Member) by a duly authorised representative and Regulation 46 of Table A shall be modified accordingly.
- 14.4 A Director (including an alternate Director) shall not require any shareholding qualification but shall nevertheless be entitled to receive notice of and attend and speak at any general meeting of the Company.

15. VOTES OF MEMBERS

- 15.1 Regulation 56 shall be modified by the deletion of the words "instruments of proxy, not less than 48 hours before the time appointed for holding" and substituting instead the words "forms of proxy, within the time limits prescribed by these Articles for deposit of forms of proxy for use at" and by including the words "or poll" after the words "adjourned meeting".
- 15.2 Regulation 59 shall be modified by including the words "and on a show of hands" after the words "On a poll" and by including the words ", provided that each proxy is appointed to exercise the rights attached to a different share or shares held by him. When two or more valid but different forms of proxy or appointments of proxy by electronic means are delivered or received in respect of the same share for use at the same meeting, the one which is last validly delivered or received (regardless of its date or the date of its execution) shall be treated as replacing and revoking the other(s) as regards that share. If the Company is unable to determine which was last delivered or received, none of them shall be treated as valid in respect of that share" after the words "to attend on the same occasion".

- 15.3 Subject to article 15.4, a form appointing a proxy shall be in writing in any form which is usual, or in any form which the Directors may approve, and shall be executed by or on behalf of the appointor.
- 15.4 Subject to the Act, the Directors may resolve to allow a proxy to be appointed by electronic means subject to such limitations, restrictions or conditions as the Directors think fit (including, without limitation, the ability to require such evidence as they consider appropriate to decide whether the appointment of a proxy in such manner is effective).
- 15.5 In order for the appointment of a proxy to be valid:
- 15.5.1 (in the case of an appointment of a proxy by hard copy) the form of proxy together with the relevant documents, if any, must be:
- 15.5.1.1 received left at or sent by post to the office (or such other place within the United Kingdom as may be specified in the notice convening the meeting and/or in any form of proxy or other accompanying document sent out by the Company in relation to the meeting) by the relevant time; or
- 15.5.1.2 duly delivered in accordance with article 15.7;
- 15.5.2 (in the case of an appointment of proxy by electronic means) the communication appointing the proxy by electronic means together with the relevant evidence must be received at the address by the relevant time.
- 15.6 For the purposes of article 15.5:
- 15.6.1 for the purpose of appointing a proxy by electronic means, "address" means the number or address which has been specified by the Company for the purpose of receiving communications appointing proxies by electronic means;
- 15.6.2 **"relevant documents"** means either (i) the power of attorney or other authority relied on to sign the form of proxy, or (ii) a copy of such document certified as a true copy of the original by a notary or solicitor or certified in some other way approved by the Directors;

15.6.3 **"relevant evidence"** means any evidence required by the Directors in accordance with the provisions of article 15.4; and

15.6.4 **"relevant time"** means:

- (a) 48 hours before the time appointed for the commencement of the meeting or adjourned meeting to which the proxy appointment relates; or
- (b) in the case of a poll taken more than 48 hours after it is demanded, 24 hours before the time appointed for the taking of the poll.

In calculating the relevant time or any other period of time referred to in this article 15.6.4, any part of a day that is not a working day shall be excluded.

15.7 If a meeting is adjourned for less than 48 hours or if a poll is not taken immediately but is taken not more than 48 hours after it was demanded, a proxy appointment may be delivered in hard copy form at the adjourned meeting or at the meeting at which the poll was demanded to any Director or the secretary. In calculating the periods referred to in this article 15.7, any part of a day that is not a working day shall be excluded.

15.8 A vote given or poll demanded by proxy or by a duly authorised representative of a corporation shall be valid even though the authority of the person voting or demanding a poll has previously terminated, unless notice of the termination was received by the Company:

15.8.1 (in the case of a duly authorised representative of a corporation) at the office;

15.8.2 (where the proxy was appointed by a form of proxy in hard copy form) at the office or such other place as is specified for depositing such form of proxy;

15.8.3 (where the proxy was appointed by electronic means) at the address (as specified in article 15.6);

in each case (i) at least 48 hours (excluding any part of a day which is not a working day) before the time appointed for the commencement of the meeting or adjourned meeting at which such vote is given or (ii) in the case of a poll taken otherwise than at or on the same day as the meeting or adjourned meeting, at least 24 hours

(excluding any part of a day which is not a working day) before the time appointed for the taking of the poll at which the vote is cast .

16. APPOINTMENT AND NUMBER OF DIRECTORS

- 16.1 Each Majority Shareholder shall have the right to appoint one person as a director of the Company (subject to first obtaining the written approval of the other A Shareholders in respect of such person (other than the Majority Shareholder himself where such approval shall not be required) such approval not to be unreasonably withheld or delayed and to remove from office such person as appointed and to appoint another person in his place and, for so long as the remaining shareholders (or their Permitted Transferees) hold A Shares, they shall not vote their A Shares so as to remove such person from office;
- 16.2 Unless and until otherwise determined by special resolution of the Company the number of Directors (other than alternate Directors) shall not be less than 4.
- 16.3 Neither the Company nor its Directors shall have power to fill any vacancy on the Board or to appoint any person as an additional Director.
- 16.4 Every Director appointed pursuant to this article 16 shall be entitled from time to time to make such disclosure to his appointor about the business and affairs of the Company and its subsidiaries as he shall in his absolute discretion determine.
- 16.5 The Directors shall not be required to retire by rotation. The last sentence of regulation 84 shall not apply and any reference in regulations to retirement by rotation shall be disregarded.

17. ALTERNATE DIRECTORS

- 17.1 Any Director (other than an alternate Director) may appoint any other person willing so to act to be an alternate Director and may remove from office an alternate Director so appointed by him.
- 17.2 An alternate director ceases to be an alternate for his appointor when his appointor ceases to be a director.

18. DISQUALIFICATION AND REMOVAL OF DIRECTORS

The office of Director shall be vacated if any Director:

- 18.1 has an order made in respect of him under section of the 252 Insolvency Act 1986 or has a petition presented in respect of him under section 264 of that act or if he makes any arrangements or composition with his creditors generally;
- 18.2 becomes prohibited from being a Director by reason of any order made under section 16 of the Company Directors Disqualification Act 1986 or under any other statute;
- 18.3 in the reasonable opinion of all his co Directors becomes incapable by reason of mental disorder of discharging his duties as a Director;
- 18.4 resigns his office by written notice to the Company;
- 18.5 shall for more than six months have been absent without the permission of the Directors from the meetings of the Directors held during that period and the Directors resolve that his office shall be vacated; or
- 18.6 is removed from office by his appointor pursuant to these Articles.

19. VOTING POWER IN SUBSIDIARIES

The Directors may exercise the voting power conferred by the Shares in any other company held or owned by the Company in such manner in all respects as they think fit including the exercise thereof in favour of any resolution appointing them or any of their number as directors or officers of such other company or providing for the payment of remuneration to the directors or officers of such other company and a Director may vote in favour of the exercise of such voting rights in the manner aforesaid notwithstanding that he may be or be about to become a director or officer of such other company and as such or in any other manner is or may be interested in the exercise of such voting rights as aforesaid.

20. PENSIONS

The Board may establish and maintain or procure the establishment and maintenance of any non contributory or contributory pension, provident or superannuation funds for the benefit of and give or procure the giving of donations, gratuities, pensions, allowances or emoluments to any persons who are or were at any time in the employment or service of the Company or of any Subsidiary or any body corporate which is an associate (within the meaning of section 52 of the Companies Act 1989) of the Company or of any Subsidiary or who are or were at any time Directors or officers of the Company or of any such other company as aforesaid and holding any salaried employment or office in the Company or such other company and the

spouses, widows, widowers, families and dependants of any such persons and also establish and subsidise or subscribe to any institutions, associations, clubs or funds calculated to be for the benefit of or to advance the interests and well being of the Company or of any other such company as aforesaid or of any such person as aforesaid and make payments for or towards the insurance of any such persons as aforesaid and subscribe or guarantee money for any charitable or benevolent objects or for any exhibition or for any public, general or useful object and do any of the matters aforesaid either alone or in conjunction with any such other company as aforesaid. Subject always (if the Act shall so require) to particulars with respect to the proposed payment being disclosed to the Members and to the proposal being approved by the Company any Director holding any such employment or office shall be entitled to participate in and retain for his own benefit any such donation, gratuity, pension, allowance or emolument.

21. PROCEEDINGS AND POWERS OF DIRECTORS

- 21.1 Regulation 88 of Table A shall be read and construed as if the word "not" in line 3 thereof were omitted and as if the word "not" were inserted between the words "shall" and "have" in line 5 thereof.
- 21.2 The quorum necessary for the transaction of business of the Directors whether at a meeting of the Board or any duly appointed committee thereof shall be those persons constituting a majority of the appointed committee/board members. A person who holds office only as an alternate shall in the absence of his appointor be counted as part of the quorum whether or not he is also a Director and therefore counted as part of the quorum in his own capacity.
- 21.3 The Directors may exercise all the powers of the Company to borrow money and to mortgage or charge its undertaking, property and uncalled capital or any part thereof and to issue debentures, debenture stock and other securities whether outright or as security for any debt, liability or obligation of the Company or of any third party.
- 21.4 A Director may vote as a Director on any resolution concerning any contract or arrangement in which he is interested including any appointment to office or employment with the Company or any body corporate in which the Director is interested or upon any matter arising thereout and if he shall so vote his vote shall be counted and he shall be counted in reckoning a quorum when any such contract or

arrangement is under consideration and regulations 94 and 97 of Table A shall be modified accordingly.

- 21.5 Any Director enabled to participate in the proceedings of a meeting by means of a communication device (including a telephone) which allows all the other Directors present at such meeting (whether in person or by alternate or by means of such type of communication device) to hear at all times all other Directors present at such meeting (whether in person or by alternate or by means of such type of communication device) shall be deemed to be present at such meeting and shall be counted when reckoning a quorum.

22. CAPITALISATION

Regulation 110 of Table A shall be read and construed as if the words "special resolution" were substituted for the words "ordinary resolution" in the first line thereof and on any occasion when Shares are allotted and distributed as fully paid pursuant to the provisions of Regulation 110 the Shares allotted to Members already holding A Shares shall forthwith be converted into A Shares and the Shares allotted to Members already holding B Shares shall forthwith be converted into B Shares.

23. SEALS AND EXECUTION OF DOCUMENTS

- 23.1 The Directors may provide a common seal for the Company and shall have power from time to time to destroy the same and to substitute a new seal in its place. The Directors shall provide for the safe custody of every seal of the Company.
- 23.2 Documents may only be executed on behalf of the Company if such execution is authorised by a resolution of the Directors or of a committee of the Directors which authority may be of a general nature and need not apply only to specific documents or transactions. Every document so authorised to be executed on behalf of the Company shall be signed by one Director and the Secretary or by two Directors (whether or not the Directors have also resolved that the common seal shall also be affixed to such document).

24. NOTICES

- 24.1 Any notice or other document to be given to or by any person pursuant to these Articles (other than a notice calling a meeting of the Directors) shall be in writing
- 24.2 Subject to the Articles, any notice or other document to be sent or supplied:
- 24.2.1 to a Member by the Company may be sent or supplied in accordance with and in any way which the 2006 Act provides for documents or information to be sent or supplied by a company; and
- 24.2.2 by anyone to the Company may be sent or supplied in accordance with and in any way in which the 2006 Act provides for documents or information to be sent or supplied to a company.
- 24.3 Nothing in article 24.2.1 shall affect any provision of the Act requiring offers, notices or documents to be served on, or delivered to, a Member in a particular way.
- 24.4 Any notice or other document sent or supplied by the Company to a Member (or any person entitled to receive notice under these Articles) shall:
- 24.4.1 if sent in accordance with section 1147 of the 2006 Act be deemed to have been received by the intended recipient at the time prescribed by that section save that in calculating a period of hours for the purposes of that section account shall be taken of any part of a day that is not a working day ;
- 24.4.2 if sent to the intended recipient at his registered address outside the United Kingdom or at an address specified by him for the purpose outside the United Kingdom be deemed to have been received 72 hours after it was posted provided that it was properly addressed and pre-paid as airmail; and
- 24.4.3 if delivered personally or by hand to or left at a registered address or an address specified for the purpose by the intended recipient be deemed to have been received by the intended recipient on the day it was so delivered or left.
- 24.5 In the case of joint holders of a Share:
- 24.5.1 all notices and other documents shall be given or sent to the person named first in the register in respect of the joint holding and notice so given shall be sufficient notice to all joint holders; and

24.5.2 any request for consent to receipt of communications in electronic form and/or by means of a website shall be sent to the person first named in the register in respect of the joint holding and any express consent (or deemed consent) given by such holder to the receipt of communications in such manner shall bind all joint holders.

25. INDEMNITY

Subject to the provisions of the Act and in addition to such indemnity as is contained in Regulation 118 of Table A every Director, officer or official of the Company shall be entitled to be indemnified out of the assets of the Company against all losses or liabilities incurred by him in or about the execution and discharge of the duties of his office.

26. PURCHASE OR TRANSFER OF DEFERRED SHARES

26.1 Neither the cancellation of the Deferred Shares for no consideration by means of a reduction of capital in accordance with chapter 10 of part 17 of the 2006 Act (including, without limitation, a reduction of capital supported by solvency statement) nor the obtaining by the Company, nor the making by the Court of, any order confirming any such reduction of capital nor the becoming effective of any such court order shall constitute a variation, modification or abrogation of the rights attaching to the *Deferred Shares* and accordingly the *Deferred Shares* may at any time be cancelled for no consideration by means of a reduction of capital effected in accordance with the 2006 Act without sanction on the part of the holders of the *Deferred Shares*.

26.2 If at any time there are any issued *Deferred Shares*, the Company shall hereby be deemed to have irrevocable authority at any time to appoint any person to execute, on behalf of the holders of such *Deferred Shares*, a transfer of some or all of such *Deferred Shares* to such person as the Company may determine as custodian thereof and/or to purchase the same (in accordance with the provisions of chapter 4 of part 18 of the 2006 Act) in any such case for a price not more than an aggregate sum of £1.00 for all such *Deferred Shares* transferred and/or purchased (as applicable) without obtaining the sanction of the holder or holders thereof and pending such transfer and/or purchase to retain the certificates for such *Deferred Shares*.

26.3 Any director of the Company may, as agent for such holder of *Deferred Shares*, execute the necessary transfer(s) or buy-back agreement or such other documentation

as is required on behalf of that holder of Deferred Shares in respect of the purchase of any of the Deferred Shares by the Company and deliver such transfer(s) or buy-back agreement or other documentation as is required to the Company

- 26.4 The Board will authorise registration of any transfer(s) or buy-back(s) of Deferred Shares in accordance with articles 26.1 and 26.3. After such registration, the title of the person to whom such Deferred Shares have been transferred as registered holder of such shares will not be affected by any irregularity in, or invalidity of, such proceedings, which will not be questioned by any person.

27. DRAG ALONG

- 27.1 If the Dragging Shareholders wish to transfer (whether through a single transaction or a series of related transactions) all of the Equity Shares registered in their name to a purchaser and/or to any of its Connected Persons and/or to any other persons with whom it is Acting in Concert (together the **"Drag Buyer"**), the Dragging Shareholders shall have the right by notice (**"Drag Along Notice"**) to each of the other Shareholders, other than the Company when it holds Shares as treasury shares, (**"Dragged Shareholders"**) to require all such Dragged Shareholders to sell and transfer the legal and beneficial title to all of the Equity Shares registered in their name (**"Dragged Shares"**) (free from all liens, charges and encumbrances and together with all rights attaching to them and with full title guarantee) to the Drag Buyer (or as the Drag Buyer may direct) in accordance with the provisions of this article 27.

- 27.2 A Drag Along Notice may be given to the Dragged Shareholders at any time before the completion of the transfer of the Dragging Shareholders' Equity Shares to the Drag Buyer (or as the Drag Buyer may direct). It shall specify:

27.2.1 that the Dragged Shareholders are required to transfer all their Shares pursuant to this article 27;

27.2.2 the identity of the Drag Buyer (and, if relevant, the transferee(s) to whom the Drag Buyer directs the Dragged Shares are to be transferred);

27.2.3 the amount (if any) and form of consideration for which the Dragged Shares are to be transferred (determined in accordance with articles 27.4 to 27.5);

27.2.4 the proposed, place, date and time of transfer; and

27.2.5 the other terms and conditions of sale to which the Dragged Shareholders are required to adhere (determined in accordance with article 27.8),

and shall be accompanied by all documents required to be executed by the Dragged Shareholders to give effect to the relevant transfer and, (if relevant) a form of election for any alternative consideration offered by the Drag Buyer (with Dragging Consent) pursuant to article 27.7.

27.3 A Drag Along Notice may be revoked by the Dragging Shareholders at any time prior to the completion of the sale and purchase of the Dragged Shares by notice to the Dragged Shareholders.

27.4 The amount (if any) of consideration for which the Dragged Shareholders shall be obliged to sell each of their Dragged Shares shall be that to which they would be entitled if the aggregate value of the total consideration to be paid by the Drag Buyer for all of the Dragging Shareholders' Equity Shares and the Dragged Shares as a whole was allocated to the Dragging Shareholders and the Dragged Shareholders in the order of priority set out in article 3 (Share Capital). If any of the consideration to be paid by the Drag Buyer is to be deferred or is otherwise not payable until after completion of the sale of the Dragging Shareholders' Equity Shares and the Dragged Shares to the Drag Buyer (or as the Drag Buyer may direct), any initial consideration to be paid at the time of such completion shall be allocated to the Dragging Shareholders and the Dragged Shareholders in the order of priority set out in article 3 (Share Capital) and if, and to the extent that, any deferred or other consideration is subsequently to be paid by the Drag Buyer it shall be allocated to the Dragging Shareholders and the Dragged Shareholders in the order of priority set out in article 3 (Share Capital) after taking into account any prior allocations of consideration that have already taken place.

27.5 For the avoidance of doubt, "**total consideration**" for the purposes of article 27.4 shall be construed as meaning the value or worth of the total consideration regardless of the form of the total consideration and shall exclude any offer to subscribe for or acquire any share, debt instrument or other security in the capital of any Drag Buyer (or a Member of the Same Group as the Drag Buyer) made to a Shareholder which is in addition to the consideration proposed to be paid by the Drag Buyer for all the Equity Shares.

- 27.6 The amount of consideration (if any) to be paid by the Drag Buyer for the Dragged Shares (as determined in accordance with article 27.4) shall be paid in cash or in such other form of non-cash consideration with an equivalent cash value as shall be elected by the Drag Buyer (with Dragging Consent), provided that:
- 27.6.1 the form of any non-cash consideration and the proportion of cash and/or any non-cash consideration to be paid for the Dragged Shares shall be the same for each Dragged Shareholder;
- 27.6.2 the form of any non-cash consideration to be paid for the Dragged Shares shall be the same as the form of any non-cash consideration to be paid for the Dragging Shareholders' Equity Shares; and
- 27.6.3 the proportion of cash and/or any non-cash consideration to be paid for the Dragged Shares shall be the same as, or a greater proportion of cash than, the proportion of cash and/or any non-cash consideration to be paid for the Dragging Shareholders' Equity Shares.
- 27.7 The Drag Buyer (with Dragging Consent) may also offer all of the Dragged Shareholders another form of consideration and a different proportion of cash and/or non-cash consideration which they may elect to receive as an alternative in whole or in part to the consideration set out in the Drag Along Notice.
- 27.8 Subject to articles 27.4 to 27.7, the Dragged Shares shall be acquired on the same, or no more onerous, terms and conditions (including the same, or no more onerous, representations, warranties, covenants, undertakings, indemnities and requirements relating to contributing to any retention (if any)) for which:
- 27.8.1 where there are Dragging Shareholders with the same class of Shares as the holder of the relevant Dragged Shares, those Dragging Shareholders; or
- 27.8.2 otherwise, the A Shareholders,
- are selling their Equity Shares, disregarding any terms and conditions which are not directly related to the sale of the Dragging Shareholders' Equity Shares.
- 27.9 Completion of the sale and purchase of the Dragged Shares shall take place on the same date and at the same time and place as the sale of the Dragging Shareholders' Equity Shares to the Drag Buyer (or as the Drag Buyer may direct) unless all of the Dragged Shareholders and the Dragging Shareholders otherwise agree, in which case

completion of the sale and purchase of the Dragged Shares shall take place on a date that is no more than 20 Business Days later.

27.10 On or before the Drag Completion Date each Dragged Shareholder shall deliver to the Company:

27.10.1 duly executed transfers of the Dragged Shares registered in its name in favour of the Drag Buyer (or as the Drag Buyer directs in the Drag Along Notice);

27.10.2 the relevant share certificate(s) in respect of those Dragged Shares (or an indemnity in a form reasonably satisfactory to the Directors for any lost certificates);

27.10.3 a duly executed sale agreement (in a form agreed by the Dragging Shareholders); and

27.10.4 any other related documents required by the Dragging Shareholders to be executed by the Dragged Shareholders.

27.11 Subject to compliance with article 27.10 and to the extent only that the Drag Buyer has put the Company in the requisite cleared funds or other form of consideration, the Company shall on the Drag Completion Date pay, on behalf of the Drag Buyer, to each of the Dragged Shareholders in respect of its Dragged Shares the consideration (if any) it is due in accordance with articles 27.4 to 27.7, less any amount that is to be deducted from such consideration pursuant to article 27.13. Payment to the Dragged Shareholder shall be made to the relevant Dragged Shareholder's last known address on the Company's register of member. The Company's receipt of the requisite cleared funds or other form of consideration from the Drag Buyer shall be a good discharge to the relevant Drag Buyer. Pending compliance by each Dragged Shareholder with its obligations in article 27.10, the Company shall hold the funds or other form of consideration received from the Drag Buyer in respect of the Dragged Shares (less any amount that is to be deducted from such funds pursuant to article 27.13 on trust for the Dragged Shareholders, without any obligation to pay interest.

27.12 Unless and to the extent that the Dragging Shareholders otherwise direct the Company in writing, upon any person (other than the Drag Buyer or its nominee), following the date of service of a Drag Along Notice, becoming a Shareholder (or increasing an existing shareholding in the Company) including pursuant to the

exercise of any option, warrant or other right to acquire or subscribe for, or to convert any security into, Shares ("**New Shareholder**"):

27.12.1 a Drag Along Notice on the same terms as the previous Drag Along Notice shall be deemed to have been served upon the New Shareholder, who shall then be bound to sell and transfer the legal and beneficial title to all such Shares acquired by him (free from all liens, charges and encumbrances and together with all rights attaching to them and with full title guarantee) to the Drag Buyer (or as the Drag Buyer may direct); and

27.12.2 the provisions of this article 27 shall apply (with necessary modifications) to the New Shareholder as if it were a Dragged Shareholder, except that, where completion of the sale and purchase of the Dragged Shares to the Dragged Buyer (or as the Drag Buyer may direct) has already taken place, the completion date of the sale and purchase of the Shares shall take place on such date as the Drag Buyer shall determine.

27.13 The reasonable transaction fees, costs and expenses incurred by the Dragging Shareholders and the Dragged Shareholders that (as determined by the Dragging Shareholders) are attributable to the transfer of Shares made in accordance with this article 27 shall be borne by each of the Dragging Shareholders and the Dragged Shareholders pro rata to their holdings of Shares being transferred. An amount equal to the Dragged Shareholders' proportionate share of such fees, costs and expenses shall, if the Dragging Shareholders so requires, be deducted by the Company from the amount of consideration which the Dragged Shareholders are entitled to receive for their Dragged Shares (as determined in accordance with article 27.4) and shall be used to pay their proportionate share of such fees, costs and expenses.

28. TAG ALONG

28.1 This article 28 shall not apply to a Proposed Sale in respect of which a Drag Along Notice has been served or which is in accordance with article 8 (Permitted Transfers).

28.2 If one or more Shareholders ("**Proposed Sellers**") proposes to transfer to any person (whether through a single transaction or a series of related transactions) such number of Equity Shares which would, if registered, result in such person (together with its Connected Persons and any other persons with whom it is Acting in Concert) (together the "**Tag Buyer**") obtaining the ownership of not less than 50 per cent in

nominal value of the Equity Shares (including any Equity Shares held as treasury shares) ("**Proposed Sale**"), the Proposed Sellers shall not be entitled to transfer such Equity Shares and no such Equity Shares shall be capable of being purchased or transferred unless the Tag Buyer (or the Company in its capacity as agent for the Tag Buyer) shall have offered ("**Tag Offer**") in accordance with this article 28 to purchase from each of the other Equity Shareholders (not being a Tag Buyer) ("**Other Shareholders**") such proportion of the Equity Shares registered in their name ("**Tagged Shares**") as is equal to the proportion which the Equity Shares that the Proposed Sellers are proposing to transfer to the Tag Buyer bears to the Proposed Sellers' total holding of Equity Shares.

28.3 A Tag Offer shall be made by notice specifying:

28.3.1 the identity of the Tag Buyer;

28.3.2 the number of Equity Shares that the Proposed Sellers are proposing to transfer to the Tag Buyer and the proportion that this bears to the Proposed Sellers' total holding of Equity Shares and the number of Equity Shares that the Tag Buyer is therefore offering to purchase from the Other Shareholders;

28.3.3 the amount and form of consideration and the proportion of cash and/or securities that the Tag Buyer is proposing to pay for each of those Equity Shares (determined in accordance with article 28.4);

28.3.4 the proposed, place, date and time of transfer;

28.3.5 a time (being not less than 10 Business Days) within which the offer, if not accepted, shall be deemed to be declined; and

28.3.6 to the extent not set out in the accompanying documents, any other terms and conditions of sale on which the Tag Buyer is proposing to purchase the Proposed Sellers' and the Accepting Shareholders' Equity Shares,

and shall be accompanied by all documents required to be executed by the Other Shareholders if they accept the Tag Offer.

28.4 The amount and form of consideration and the proportion of cash and/or securities which the Tag Buyer shall offer and is proposing to pay for each of the Tagged Shares shall be the same as that offered and to be paid for each of the Proposed Sellers' Equity Shares being transferred to the Tag Buyer pursuant to the Proposed

Sale, save that the actual amount (if any) of consideration which each of the Proposed Sellers and the Accepting Shareholders shall receive for the Shares they are transferring shall be that to which they would be entitled if the aggregate value of the total consideration as a whole to be paid by the Tag Buyer for such Shares was allocated to the Proposed Sellers and the Accepting Shareholders in the order of priority set out in article 3 (Share Capital).

28.5 Each Other Shareholder who accepts the Tag Offer within the offer period ("**Accepting Shareholder**") shall be required to:

28.5.1 transfer the legal and beneficial title to all of his Tagged Shares to the Tag Buyer free from all liens, charges and encumbrances and together with all rights attaching to them and with full title guarantee;

28.5.2 subject to article 28.4, sell his Tagged Shares on the same terms and conditions (including the same representations, warranties, covenants, undertakings, indemnities and requirements relating to contributing to any retention) as are to be given to and by the Proposed Sellers pursuant to the Proposed Sale;

28.5.3 deliver to the Tag Buyer the share certificates for his Tagged Shares (or an indemnity in a form reasonably satisfactory to the Directors for lost certificates) and a duly executed sale agreement (in a form agreed by the Proposed Sellers) setting out the relevant terms and conditions of sale; and

28.5.4 pay his proportionate share of such fees, costs and expenses that are to be borne by the Accepting Shareholders pursuant to article 28.9.

28.6 Completion of the sale and purchase of any Tagged Shares in respect of which the Tag Offer has been accepted shall be conditional upon, and shall take place on the same date and at the same time and place as, the completion of the Proposed Sale (unless any of the Accepting Shareholders and the Tag Buyer (with Dragging Consent) agree otherwise), save that if any Accepting Shareholder fails to comply with his obligations under article 28.5 on or before the completion of the Proposed Sale:

28.6.1 the completion of the Proposed Sale may be made without the completion of the sale and purchase of that Accepting Shareholder's Tagged Shares

(provided that it shall be on no more favourable terms and conditions to the Proposed Sellers than those stated in the original Tag Offer); and

28.6.2 the Tag Buyer shall not be under any further obligation to purchase those Tagged Shares.

28.7 If some or all of the Other Shareholders do not accept the Tag Offer within the offer period, the completion of the Proposed Sale may be made within three months of the end of that period (provided that it shall be on no more favourable terms and conditions to the Proposed Sellers than those stated in the original Tag Offer).

28.8 If a Compulsory Sale Notice is served on an Accepting Shareholder before the transfer of that Accepting Shareholder's Tagged Shares to the Tag Buyer, the Tag Buyer shall be entitled (with Dragging Consent) to either:

28.8.1 continue with the purchase of those Tagged Shares, subject to changing the price to the price determined in accordance with article 11 (Compulsory Transfers), in which case the Compulsory Sale Notice shall automatically be revoked upon the completion of the sale and purchase of such Tagged Shares to the Tag Buyer; or

28.8.2 continue with the completion of the Proposed Sale without the completion of the sale and purchase of those Accepting Shareholder's Tagged Shares, in which case the Tag Buyer shall not be under any further obligation to purchase those Tagged Shares and the Compulsory Sale Notice shall continue to apply.

28.9 The reasonable transaction fees, costs and expenses incurred by the Proposed Sellers and the Accepting Shareholders that (as determined by the Dragging Shareholders) are attributable to the transfer of Shares made in accordance with this article 28 shall be borne by each of the Proposed Sellers and the Accepting Shareholders pro rata to their holdings of Shares being transferred.